

This guide outlines maternity leave entitlements in accordance with Section 25 of the Basic Conditions of Employment Act (BCEA) No. 75 of 1997.

1. Entitlement

Female employees are entitled to at least 4 consecutive months of maternity leave (approximately 90 calendar days).

- Maternity leave may commence at any time from 4 weeks before the expected date of birth.
- Maternity leave must commence immediately if the employee gives birth before the intended start date.
- An employee may not work for 6 weeks after the birth of her child unless a medical practitioner certifies that she is fit to do so.

2. Pay During Maternity Leave

The BCEA does not require employers to pay employees during maternity leave. However, VioletTech Solutions provides the following support:

- Employees may apply for maternity benefits through the Unemployment Insurance Fund (UIF).
- HR will assist employees with UIF application documentation.
- Employees are encouraged to apply for UIF benefits at least 8 weeks before the expected birth date.

3. Application Process

- Submit a maternity leave application via the LMS app at least 4 weeks before the intended start date.
- Attach a medical certificate confirming the expected date of birth.
- HR will confirm the leave period and UIF application process within 5 working days.
- The employee's position is protected during maternity leave.

4. Return to Work

- Employees must notify HR at least 2 weeks before their intended return date.
 - Employees are entitled to return to the same or equivalent position.
 - Breastfeeding breaks of 30 minutes twice per day are permitted for the first 6 months after birth.
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